

United Nations Security Council Study Guide

AGENDA: The Situation In Middle East



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A. Letter from the Executive Board

Esteemed Delegates,

On behalf of the Executive Board, it is our distinct honour to welcome you to the United Nations Security Council at the CBS Assembly of Nations Conference, 2026. This distinguished forum offers a unique opportunity to engage in diplomacy, refine leadership, and exercise communication marked by clarity, precision, and purpose. The sessions ahead will demand not only intellectual rigour but also a spirit of collaboration and respect for the multilateral process. While this background guide has been prepared to provide an initial framework for your deliberations, it is by no means exhaustive. Delegates are strongly encouraged to pursue independent, comprehensive research that transcends the scope of this document, thereby enriching the quality of debate and the substance of proposed solutions.

Given the gravity and complexity of the agenda, we urge you to arrive well-prepared, with a firm grasp of the relevant political, legal, and humanitarian dimensions. Your active engagement, constructive participation, and willingness to listen and lead will be critical to ensuring that our discussions remain substantive and solution-oriented. It is our aspiration that through this simulation, you will hone the art of negotiation, embrace the principles of consensus-building, and deepen your understanding of the challenges and responsibilities that define contemporary international security. This experience will not only enhance your diplomatic capabilities but will also inspire you to approach global issues with empathy, insight, and resolve. In this regard, we kindly ask each delegate to note that this will be an intensive simulation that may require pre-committee and post-committee engagement.

We look forward to your informed contributions and to the dynamic exchange of ideas that will undoubtedly emerge within this chamber. May your deliberations be marked by integrity, vision, and a commitment to the common good. We extend our best wishes for your preparation and success.

Yours sincerely,

The Executive Board



B. Introduction to the Council

B.1 Mandate of the Security Council

The mandate of the United Nations Security Council must be understood as the institutionalisation of collective security within the post-1945 international legal order. It is not merely a body that discusses war, nor is it simply a diplomatic forum. It is the organ through which the international community determines when a crisis becomes a matter of international peace and security, and what forms of collective action are legally justified in response. Article 24 of the United Nations Charter gives the Security Council primary responsibility for the maintenance of international peace and security, while Article 25 obliges Member States to accept and carry out its decisions. This makes the Council distinct from most UN organs, because its decisions can create binding obligations for all Member States. The Council's mandate operates through a graduated legal architecture, especially Chapters VI, VII and VIII of the Charter. Chapter VI deals with the peaceful settlement of disputes. It allows the Council to act before a conflict becomes fully militarised. Under this chapter, the Council may investigate disputes, recommend negotiation, mediation, arbitration, judicial settlement, or other peaceful means of resolution. Its role here is preventive and diplomatic rather than coercive. For example, in conflicts such as those in Cyprus, Yemen, Colombia, and several African peace processes, the Council has supported negotiations, ceasefires, special envoys, monitoring arrangements, and political missions. Chapter VI shows that the Council's mandate is not limited to reacting after violence begins; it also includes managing fragile political situations before they escalate into wider regional or international crises.

Chapter VII is the coercive heart of the Council's mandate. Article 39 allows the Council to

determine whether a situation constitutes a threat to the peace, breach of the peace, or act of aggression. This determination is extremely important because it opens the door to binding enforcement measures. The Council has interpreted “threat to the peace” broadly. It has treated not only interstate invasion, but also terrorism, civil war, nuclear proliferation, mass atrocities, piracy, and the collapse of State authority as threats to international peace and security. For example, Iraq’s invasion of Kuwait in 1990 was treated as a classic act of aggression, leading the Council to impose sanctions and later authorise force to restore Kuwaiti sovereignty. By contrast, the post-9/11 counter-terrorism resolutions treated terrorism itself as a global security threat, requiring all States to criminalise terrorist financing, strengthen border controls and prevent support to terrorist groups.

Under Article 41, the Council may impose measures that do not involve the use of armed force. These include economic sanctions, arms embargoes, travel bans, asset freezes, commodity restrictions, inspection regimes, maritime interdiction, aviation restrictions and financial controls. The sanctions regimes against North Korea and Iran clearly demonstrate this regulatory function. In both cases, the Council did not merely condemn nuclear

proliferation; it created detailed systems of restrictions on arms transfers, nuclear-related technology, financial dealings, shipping, inspections and reporting. Similarly, sanctions against Al-Qaida, ISIL and associated individuals created global obligations for States to freeze assets, prevent travel and restrict arms access. In this sense, Article 41 allows the Council to function almost as a global security regulator. Article 42 authorises the Council to use or authorise armed force when non-military measures are inadequate. This is one of the most serious powers in international law because the UN Charter generally prohibits the use of force except in self-defence or with Security Council authorisation. The 1991 Gulf War is a major example, where the Council authorised Member States to use “all necessary means” after Iraq refused to withdraw from Kuwait. The NATO-led intervention in Libya in 2011 was also authorised through a Chapter VII mandate to protect civilians, including the establishment of a no-fly zone. These examples show that the Council can move from diplomacy to sanctions to military enforcement when it decides that international peace and security require such action.

Chapter VIII adds the regional dimension to the Council’s mandate. It recognises that regional organisations may play a major role in maintaining peace and security, but coercive enforcement action must remain linked to Security Council authority. This creates a relationship between global legality and regional capacity. For example, the African Union has worked with the Council in Somalia, Sudan and Mali; ECOWAS has been central in West African crises; and NATO, the European Union and regional maritime coalitions have often acted within or alongside Council-authorised frameworks. Chapter VIII, therefore, allows the Council to rely on regional actors that possess local knowledge, political access and operational capacity, while preserving the Council’s role as the source of universal legal

legitimacy. The Council's mandate also includes institution-building. It establishes peacekeeping missions, special political missions, sanctions committees, panels of experts, counter-terrorism bodies, monitoring groups and investigative mechanisms. The UN missions in the Democratic Republic of Congo, South Sudan, Lebanon and Mali illustrate how the Council can create long-term security governance structures. These missions may be tasked with protecting civilians, supporting elections, monitoring ceasefires, assisting disarmament, strengthening State institutions and reporting on human rights or humanitarian conditions. The Council, therefore, does not only respond to crises; it produces continuing administrative regimes through which international security is monitored and managed.

However, the Council is not a world government. Its mandate is legally powerful but politically constrained. It has no standing army of its own and depends on Member States for troops, funding, intelligence, sanctions enforcement and political cooperation. The veto power of the 5 permanent members also means that legality and power politics are deeply intertwined. The Council could act decisively in Kuwait in 1990 and Libya in 2011 because a sufficient major-power agreement existed, but it has been far more divided over Syria, Ukraine and Gaza. Therefore, the mandate of the Security Council is best understood as both

exceptional and limited: it is the strongest legal mechanism for collective security in the international system, but its effectiveness depends on political consensus, State compliance and the strategic interests of powerful States.

B.2 Powers & Functions of the Security Council

Under the United Nations Charter, the functions and powers of the Security Council are:

- to maintain international peace and security in accordance with the principles and purposes of the United Nations;
- to investigate any dispute or situation which might lead to international friction;
- to recommend methods of adjusting such disputes or the terms of settlement;
- to formulate plans for the establishment of a system to regulate armaments;
- to determine the existence of a threat to the peace or act of aggression and to recommend what action should be taken;
- to call on Members to apply economic sanctions and other measures not involving the use of force to prevent or stop aggression;
- to take military action against an aggressor;
- to recommend the admission of new Members;
- to exercise the trusteeship functions of the United Nations in "strategic areas";
- to recommend to the General Assembly the appointment of the Secretary-General and, together with the Assembly, to elect the Judges of the International Court of Justice.

B.3 Key Articles & Provisions

1. Article 24 gives the Security Council primary responsibility for the maintenance of international peace and security. This article is the constitutional starting point of the Council's authority. The word "primary" is crucial because it means that while other UN organs may discuss questions of peace and security, the Security Council occupies the central institutional position when a situation requires collective security action. Article 24, therefore, transforms the Council from a diplomatic forum into the principal organ responsible for determining when international peace is threatened and what kind of collective response is required.
2. Article 25 is perhaps the most foundational provision underpinning the Council's authority. It provides that members of the United Nations agree to accept and carry out the

decisions of the Security Council. This is what distinguishes the Council from every other international body: its decisions can be universally binding. A State cannot unilaterally declare itself exempt from a binding Security Council resolution. However, the binding nature of a resolution depends on its wording, legal basis and intention. Where the Council clearly acts in mandatory terms, especially under Chapter VII, Member States are legally obligated to comply.

3. Article 27 governs the Council's voting procedures. Each member holds one vote. Decisions on procedural matters require 9 affirmative votes, while decisions on substantive matters require 9 affirmative votes and no negative vote by any permanent member. Abstentions by permanent members do not constitute a veto; a permanent member that abstains allows a resolution to pass. The veto, however, is absolute: a single negative vote by any one of the 5 permanent members defeats a substantive resolution entirely, regardless of how the remaining members vote. This architecture was deliberately designed so that the great powers could not be outvoted on matters vital to their security interests, thereby ensuring their continued participation in the UN system.

4. Article 39 is the gateway provision of Chapter VII. It empowers the Security Council to determine whether a threat to the peace, a breach of the peace, or an act of aggression exists. This determination is legally significant because it converts a political crisis into a matter of collective security. Once Article 39 is activated, the Council can move from

recommendation to enforcement. Over time, the Council has interpreted “threat to the peace” broadly, covering not only interstate aggression, but also terrorism, civil wars with regional spillovers, nuclear proliferation, piracy, mass atrocities, and the collapse of state authority.

5. Article 41 allows the Security Council to impose enforcement measures that do not involve the use of armed force. These may include economic sanctions, arms embargoes, asset freezes, travel bans, financial restrictions, commodity bans, inspection obligations, maritime interdiction measures, and diplomatic limitations. Article 41 is one of the Council’s most important operational tools because it allows coercion without immediate military action. Sanctions regimes against North Korea, Iran, ISIL, Al-Qaida, and various armed groups show how Article 41 enables the Council to construct detailed global compliance systems involving States, banks, ports, customs authorities, aviation actors and financial institutions.

6. Article 42 gives the Council the authority to take or authorise military enforcement action when Article 41 measures are inadequate. This may involve air, sea or land operations necessary to restore or maintain international peace and security. Article 42 is one of the most serious provisions in the Charter because it creates a legal pathway for collective force. Since the UN Charter generally prohibits the unilateral use of force, except in self-defence, Article 42 makes the Security Council the principal body authorised to authorise military action on behalf of the international community. The 1991 Gulf War, after Iraq's invasion of Kuwait, remains a major example of this enforcement logic.

7. Article 103 contains the Charter's supremacy clause. It provides that if there is a conflict between a Member State's obligations under the UN Charter and its obligations under any other international agreement, the Charter obligation prevails. This gives Security Council decisions, particularly binding Chapter VII resolutions, exceptional legal force within the international legal order. In practice, this means that obligations arising from binding Council resolutions can override conflicting treaty commitments, including trade agreements, bilateral arrangements or regional obligations. However, Article 103 should not be read as giving the Council unlimited authority; its decisions remain situated within the broader framework of the Charter, general international law and peremptory norms.

B.4 United Nations Security Council & its Relationship with Customary International Law

The relationship between the United Nations Security Council and customary international

law is complex because the Council operates at the intersection of political authority, treaty law, and general international law. The Security Council derives its formal powers from the UN Charter, which is a treaty. Customary international law, by contrast, emerges from general and consistent State practice, grounded in a sense of legal obligation, known as *opinio juris*. The Council is therefore not itself the source of customary law in the same way that States are. However, its resolutions, practice, institutional language, and repeated determinations can strongly influence how customary international law develops, is interpreted, and is applied.

The Council's first relationship with customary international law is evidentiary. Security Council resolutions can serve as evidence of how States understand a legal norm, especially when resolutions are adopted unanimously or with broad support. Since the Council is composed of Member States acting in an official capacity, its resolutions may reflect collective legal opinion on matters such as aggression, terrorism, sanctions, peacekeeping, protection of civilians, non-proliferation, piracy, and humanitarian access. For example, repeated Council condemnation of terrorism after 9/11 helped consolidate the position that terrorism represents not merely a domestic criminal matter but a threat to international peace

and security. Similarly, Council practice on piracy off the coast of Somalia reinforced the customary and treaty-based idea that piracy is a matter of universal concern, although the Council acted through specific authorisations tailored to Somali territorial waters. The Council may also crystallise emerging customary norms. Where a legal principle is still developing, repeated Security Council practice can accelerate its movement from political expectation to legal norm. The Council's treatment of mass atrocities, civilian protection, and conflict-related sexual violence has contributed to the broader normative architecture around protection of civilians, even if the precise content of these norms remains contested. For instance, the Council's resolutions on women, peace and security, beginning with Resolution 1325, did not create customary law in and of themselves, but they helped institutionalise expectations regarding women's participation, protection, and gender-sensitive peacebuilding. Over time, such repeated practice can shape the legal consciousness of States and international organisations.

However, the Security Council cannot simply override customary international law at will. Although Article 103 of the UN Charter gives Charter obligations priority over conflicting treaty obligations, the Council remains bound by the Charter's purposes and principles. It is not legally unlimited. At a minimum, the Council cannot authorise conduct that violates jus cogens norms, such as genocide, slavery, torture, racial apartheid, or aggressive war. These peremptory norms occupy a higher position within international law and cannot be displaced by ordinary treaty obligations or institutional decisions. Therefore, even though binding Chapter VII resolutions carry exceptional legal force, their legality is not detached from the broader hierarchy of international law. The most important tension arises when Council action appears to conflict with customary rules on sovereignty, non-intervention, immunity,

due process, or the use of force. For example, sanctions regimes have raised questions about individual rights, fair listing procedures, asset freezes, and access to judicial review.

Similarly, authorisations of force have generated debates over whether the Council is enforcing international law or reshaping the boundaries of lawful intervention. The Council's practice in Libya in 2011, in which force was authorised to protect civilians, is often read as part of the broader debate on humanitarian protection and the responsibility to protect. Yet the controversy that followed also showed that Council action does not automatically settle customary law; it may instead produce contestation over the meaning and limits of the norm.

The Council's relationship with customary international law is therefore dialectical. On the one hand, the Council derives legitimacy from existing customary principles such as sovereign equality, non-use of force, self-defence, humanitarian protection, and cooperation against international crimes. On the other side, its practice contributes to the interpretation, consolidation, and sometimes transformation of those principles. It can clarify what counts as a threat to peace, strengthen obligations of prevention and cooperation, and create patterns of expectation that later influence customary law. But it cannot manufacture custom in isolation from States, nor can it lawfully act outside the fundamental limits of the Charter and peremptory international law.

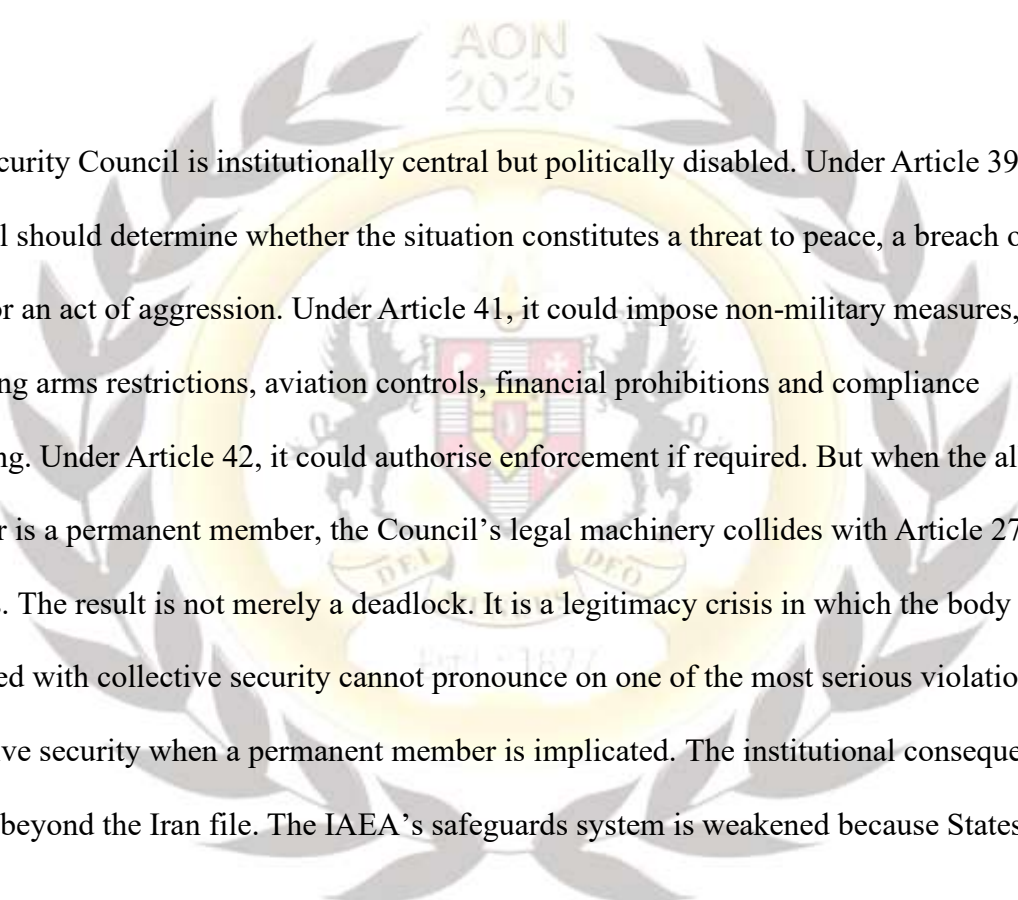
C. Introduction to the Agenda: Situation in the Middle East

The Middle East has entered its most structurally destabilising phase since 1973. What distinguishes the current crisis from prior cycles of regional violence is the simultaneous collapse of multiple deterrence architectures across six interlocking theatres — direct US-Iran kinetic engagement, the protracted Gaza catastrophe, a renewed Lebanon war, Strait of Hormuz closure, UNSC paralysis induced by P5 fracture, and cascading humanitarian collapse. These are not parallel crises. They are mutually reinforcing fault lines operating within a single regional system where proxy networks, energy chokepoints, and great power competition intersect at unprecedented density.

C.1. The United States and Iran Conflict in 2026

The United States-Iran conflict must be understood not only as a regional war but also as a systemic crisis in the legal architecture of collective security. At the centre of the matter lies Article 2(4) of the United Nations Charter, which prohibits the threat or use of force against the territorial integrity or political independence of any State. This prohibition is not an ordinary treaty rule. It is the organising principle of the post-1945 international order. Every later framework, including sanctions law, arms control, humanitarian protection, non-proliferation diplomacy and Security Council enforcement, depends on the assumption that military force cannot be normalised as a tool of preventive regime destruction. The legal difficulty is sharpened by the nature of the strike itself. If the military campaign involved the targeted killing of Iran's Supreme Leader and principal national security officials, the issue is no longer limited to unlawful force. It becomes a question of political decapitation, sovereign equality, immunities of senior State officials and the prohibition of aggression. Article 51 of

the Charter permits individual or collective self-defence only in the event of an armed attack. A nuclear programme, even one regarded as strategically threatening, does not by itself constitute an armed attack. The existence of an IAEA monitoring architecture is precisely what distinguishes a proliferation concern from an imminent armed attack. If that architecture is bypassed through unilateral force, the message to every State under pressure is not compliance, but survival through accelerated deterrence.



The Security Council is institutionally central but politically disabled. Under Article 39, the Council should determine whether the situation constitutes a threat to peace, a breach of peace or an act of aggression. Under Article 41, it could impose non-military measures, including arms restrictions, aviation controls, financial prohibitions and compliance reporting. Under Article 42, it could authorise enforcement if required. But when the alleged violator is a permanent member, the Council's legal machinery collides with Article 27 veto politics. The result is not merely a deadlock. It is a legitimacy crisis in which the body entrusted with collective security cannot pronounce on one of the most serious violations of collective security when a permanent member is implicated. The institutional consequences extend beyond the Iran file. The IAEA's safeguards system is weakened because States may

conclude that monitored nuclear latency does not prevent military attack. The norm of sovereign equality is degraded because some States become practically immune from accountability while others remain subject to enforcement. The ICC route is limited where jurisdictional consent is absent or where a Security Council referral is vetoed. The General Assembly may act under the Uniting for Peace logic, but its resolutions cannot substitute for binding Chapter VII enforcement.

C.2. The Strait of Hormuz

The Strait of Hormuz is not merely a regional maritime chokepoint. It is a legal test case for whether the international law of the sea can function when strategic coercion is imposed at the narrowest point of global energy circulation. The Strait links the Persian Gulf to the Gulf of Oman and the wider Indian Ocean, making it indispensable for oil, liquefied natural gas, fertiliser supply chains, commercial shipping and naval mobility. A closure or armed obstruction of Hormuz, therefore, cannot be treated as a bilateral dispute between Iran and its adversaries. It immediately becomes a matter of international peace and security.

The legal framework is anchored in UNCLOS Part III, especially Article 38, which protects transit passage through straits used for international navigation. Transit passage is stronger than innocent passage because it cannot be suspended by the coastal State in the same manner. Ships and aircraft exercising transit passage must proceed without delay and refrain from threats or use of force, but the coastal State cannot lawfully close the strait as a unilateral coercive measure. Even in wartime, a blanket closure of a strait used for international navigation would require extraordinary legal justification, and in practice would

demand Security Council authorisation if it is to be treated as a collective security measure rather than unlawful interference with navigation. The operational problem is that the law does not move ships by itself. If the IRGC or any armed actor issues warnings, lays mines, deploys drones, interferes with vessel tracking or threatens commercial vessels, the right of transit passage remains legally intact but practically inaccessible. This is the gap between legal entitlement and operational assurance. Shipping firms respond to risk, not legal doctrine. Insurers increase premiums. Ports lose predictability. Crews from labour-supplying States, especially India, Pakistan, the Philippines and other Asian maritime workforces, bear the human cost of strategic coercion.

The Security Council has several existing pathways. Under Article 39, the obstruction of Hormuz constitutes a threat to international peace and security. It can mandate the Secretary-General to report on attacks, vessel obstruction, insurance disruption, and humanitarian spillover. It can request IMO technical reporting on navigational safety, vessel traffic disruption and seafarer risk. It can coordinate with UNCTAD on trade impacts and with FAO on the consequences for fertiliser and food security. It can authorise inspection, demining support or maritime escort coordination under Chapter VII, although such authorisation

would face severe veto constraints. Chapter VIII also matters. Regional and coalition-based maritime missions may have operational capacity, but they lack the universal legal legitimacy of Security Council authorisation. A Franco-British or Gulf-led naval effort may be defensible as protection of navigation or collective self-defence in narrow cases, but it cannot replace a Council mandate for restoring transit passage. Without Council backing, maritime security becomes fragmented into competing naval coalitions, each read politically by regional actors as alignment rather than neutral enforcement.

C.3. Situation in Gaza

The Gaza conflict represents one of the clearest cases where the law is more developed than the mechanisms available to enforce it. The legal framework governing hostilities is not conceptually weak. International humanitarian law requires distinction, proportionality, precautions in attack and protection of civilians. Additional Protocol I, particularly Articles 48, 51, 52 and 57, provides the core logic, even where treaty applicability is debated, because many of these principles reflect customary international humanitarian law. Article 70 addresses humanitarian relief, while Common Article 3 and the Fourth Geneva Convention remain central to the protection of civilians. UNSC Resolution 2417 further strengthens the legal prohibition on the starvation of civilians as a method of warfare.

The deeper problem is not normative absence, but institutional non-enforcement. Gaza exposes the gap between humanitarian law as a system of obligations and the Security Council as a political body dependent on permanent member consent. If ceasefire resolutions, humanitarian access demands, arms embargo proposals or accountability referrals are blocked

by veto, the legal framework remains formally intact but operationally hollow. The consequence is not simply diplomatic frustration. It is the degradation of the UN's field capacity to keep civilians alive. UNRWA sits at the centre of this institutional crisis. It is not simply an aid organisation. In Gaza, it serves as the operational backbone for food distribution, shelter, education, medical support, and civilian registration. Attacks on UN personnel or restrictions on UNRWA operations do not only harm one agency. They weaken the entire humanitarian architecture. The 1946 Convention on the Privileges and Immunities of the United Nations and the 1994 Convention on the Safety of United Nations and Associated Personnel are relevant because, in legal terms, UN personnel are not ordinary humanitarian workers. They are protected agents of an international institution performing mandated functions.

The UN system's response must therefore move beyond calls for aid access. OCHA should coordinate humanitarian access mapping, obstruction reporting and convoy clearance data. UNRWA should provide operational capacity data on shelter, food distribution, health service loss and staff casualties. OHCHR should document patterns relevant to IHL violations. The Secretary-General should transmit consolidated reports to the Security Council at regular

intervals. The Council can require written reporting on access denial, attacks on aid personnel, dual-use restrictions and medical system collapse. Even where enforcement is blocked, documentation can preserve accountability pathways for future legal processes, including national and universal jurisdiction, as well as investigative mechanisms. The legal question is not whether civilians may be deprived of food, water, medical treatment and shelter as an indirect consequence of war. The answer is clear: they may not be deliberately placed into conditions of survival collapse. The harder question is how the UN system maintains operational presence when the Council is paralysed. The realistic pathway is to strengthen existing humanitarian notification systems, require transparent access reporting, protect UN facilities through diplomatic pressure, and preserve evidence of obstruction for later accountability.

C.4. Situation in Lebanon

Lebanon is not merely a spillover theatre. It is the place where the failure to connect military containment with political settlement becomes most visible. The Lebanese State is formally sovereign, but its coercive authority is fragmented across the Lebanese Armed Forces, Hezbollah, local militias, external patrons and foreign military pressure. This is precisely why Lebanon remains structurally vulnerable to regional escalation. It is neither fully a belligerent nor fully insulated from belligerency.

UNSC Resolution 1701 is the central legal and political framework. Adopted after the 2006 war, it calls for the cessation of hostilities, the deployment of the Lebanese Armed Forces in the south, the withdrawal of Israeli forces, support for UNIFIL, and the establishment of an

area between the Blue Line and the Litani River free of armed personnel, assets and weapons other than those of the Government of Lebanon and UNIFIL. The problem is not that Resolution 1701 lacks textual clarity. The problem is that its implementation depends on political conditions that have never fully existed. Hezbollah retains military capacity. Israel retains a security doctrine based on preemption and deterrence. The Lebanese State lacks the political and military monopoly required to fully implement the resolution. UNIFIL is therefore trapped in a mandate tension. It is expected to monitor, report and support de-escalation, but it cannot forcibly disarm Hezbollah or compel Israeli restraint beyond its mandate and rules of engagement. Its authority depends on host State consent, Council backing, troop-contributing country risk tolerance, and operational access. If UNIFIL positions are pressured, struck, obstructed or rendered operationally unsafe, the issue is not only peacekeeper safety. It is the erosion of the Security Council's field presence in one of the most sensitive fault lines in the Middle East.

The UN systems pathway should be centred on reinforcing existing mechanisms rather than inventing a new framework. The Secretary General's reporting under Resolution 1701 should be strengthened with detailed incident attribution, mapping of access obstructions, and risk

analysis for civilians and UN personnel. DPO should assess force protection and operational viability. OCHA, UNHCR, WFP and UNICEF should coordinate displacement, protection, food security and child protection responses through the humanitarian cluster system. OHCHR should document violations affecting civilians, while the Council should use consultations to pressure parties on respect for UN positions and humanitarian corridors.

The strategic weakness is the absence of a political end state. Military degradation of Hezbollah, even if tactically significant, does not automatically produce Lebanese sovereignty. Without a credible pathway to strengthen the Lebanese Armed Forces, restore State authority, protect civilians, and link southern security to national political reform, every military cycle recreates the conditions for the next one. The historical lesson from Lebanon is that armed groups embedded in social, sectarian and territorial structures cannot be removed by force alone. Security Council policy must therefore treat Resolution 1701 not as a static ceasefire document but as an unfinished framework for sovereignty restoration.

C.5. Proxy Warfare and Regional Spillover

The regional spillover of Middle East conflicts is best understood through the logic of proxy saturation. The United States, Iran, Israel, Gulf monarchies, Hezbollah, Iraqi armed factions and the Houthis do not operate in isolated theatres. They form a strategic network in which pressure in one geography is redistributed through another. This is why escalation around Iran can immediately affect Iraq, Yemen, Lebanon, the Red Sea, the Gulf and the Strait of Hormuz. The regional order is not collapsing through one war, but through interconnected arenas of coercion. The Gulf States occupy a particularly exposed position. Bahrain, Kuwait,

Qatar and the UAE host Western military infrastructure, intelligence facilities, air assets, naval logistics or command nodes. This makes them strategically indispensable to the United States and its partners, but also vulnerable to Iranian or Iran-aligned retaliation. Their problem is one of constrained sovereignty. They may be formally independent actors, but their territory can become operationally relevant in a conflict they cannot fully control. This creates legal and political ambiguity: when foreign powers use military facilities, adversaries may treat them as military objectives, while host States remain responsible for protecting civilian infrastructure and diplomatic stability.

Iraq is even more fragile because its State architecture contains competing security logics. US forces operate under bilateral arrangements. Iran-aligned Popular Mobilisation Forces retain political and coercive influence, sometimes inside formal State structures. Baghdad must balance sovereignty claims, domestic militia politics, US security demands and Iranian strategic pressure. This makes Iraq a transit zone, escalation platform and diplomatic hostage simultaneously. The Security Council cannot treat Iraq as a passive conduit for spillover. It is a State whose institutional fragmentation directly affects regional peace and security.

Yemen adds the maritime dimension. The Houthis, operating under the Ansarallah label and subject to the Yemen sanctions framework established under UNSC Resolution 2140, have demonstrated the capacity to threaten commercial shipping in the Red Sea and Gulf of Aden. Their actions connect the Yemen war to global supply chains, food security, maritime insurance, naval deployments and humanitarian access. Because Yemen depends heavily on maritime imports for food, fuel and medicine, any widening of maritime conflict punishes civilians before it degrades armed actors. The legal frameworks are multiple. UN Charter Article 2(4) governs the use of force across borders. Article 51 is invoked by States claiming self-defence against attacks by militias. International humanitarian law governs targeting, civilian protection and proportionality. UNCLOS governs navigation and maritime security. UNSC sanctions regimes, including the 2140 Yemen regime and counterterrorism frameworks such as Resolution 1373, govern arms flows, asset freezes, travel bans and support networks. The difficulty is attribution. Proxy warfare thrives because armed actors can be politically sponsored, materially supplied and strategically guided without always crossing the evidentiary threshold needed for formal State responsibility.

The UN pathway must therefore focus on existing monitoring and compliance mechanisms. Yemen's Panel of Experts should be used to trace arms components, maritime interdiction evidence, financial networks and command linkages. UNODC can support maritime crime capacity, chain-of-custody, and prosecution support. IMO can address vessel safety and reporting standards. OCHA can map the humanitarian impacts of port disruption. In Iraq, UNAMI-style political reporting and Security Council consultations can foreground militia integration, sovereignty risks and protection concerns. In the Gulf, quiet preventive

diplomacy through DPPA and the Secretary General's good offices is more realistic than a maximalist enforcement resolution.



D. Important UNSC Resolutions & Legal Doctrines

D.1. Resolution 242 (1967):

The foundational land-for-peace framework requires Israeli withdrawal from the occupied territories and recognition of all states' right to live in peace. Never enforced. Its systematic non-implementation is the original sin of UNSC credibility in the Middle East. Every subsequent resolution on Palestine exists in its shadow.

D.2. Resolution 1701 (2006):

Established UNIFIL's expanded mandate in southern Lebanon and required Hezbollah disarmament and Lebanese Armed Forces deployment to the south. Currently being violated in both letter and spirit, IDF demolitions near UNIFIL headquarters and ongoing cross-border strikes represent direct affronts to this resolution's operative paragraphs.

D.3. Resolution 2231 (2015):

Endorsed the JCPOA nuclear deal with Iran and established the sanctions relief and snapback mechanism. Its effective collapse following the 2018 US withdrawal is the direct institutional predecessor to the 2026 war, the death of diplomacy that made military action feel inevitable to both sides.

D.4. Resolution 2417 (2018):

Explicitly prohibits the use of starvation as a method of warfare and requires humanitarian access. Directly applicable to Gaza. Its systematic violation, without a Council enforcement response, has rendered it the most flagrantly ignored thematic resolution in the current crisis.

D.5. Resolution 2140 (2014):

Established the Yemen sanctions regime and Panel of Experts monitoring Houthi arms transfers and financial networks. The Iran-Houthi arms pipeline documented by the Panel of Experts is the evidentiary backbone for any legal argument connecting Iranian proxy warfare to Red Sea maritime insecurity.

D.6. UN Charter Article 2(4) and the Prohibition on the Use of Force:

The master norm of the entire international order. All current belligerents are violating it in various ways and to varying degrees. Understanding precisely how each party legally justifies or fails to justify its conduct under 2(4) is the threshold analytical requirement for any UNSC argument.

D.7. Article 51 and the Right of Self-Defence & the Caroline Doctrine:

The only lawful exception to 2(4) is outside Council authorisation. The Caroline Doctrine, requiring that self-defence be necessary, proportionate, and responsive to an imminent threat, leaving no moment for deliberation, is the legal test against which US-Israeli pre-emption must be measured. It fails that test categorically.

D.8. Geneva Conventions and Additional Protocol I:

Articles 48, 51, 52, and 57 of AP I govern distinction, proportionality, precaution, and protection of civilians. Article 70 governs humanitarian access. These are the primary legal instruments for analysing Gaza, Lebanon, and Iranian civilian casualties simultaneously. Non-derogable in all circumstances.

D.9. UNCLOS Article 38, Transit Passage Through International Straits:

The legal bedrock of the Hormuz debate. Guarantees unimpeded transit passage for all ships through straits used for international navigation. Cannot be suspended by a coastal state unilaterally. Iran's closure is legally void; the US counter-blockade raises its own questions under UNCLOS Article 25. Both are producing civilian harm on a global scale.

D.10. The Responsibility to Protect (R2P):

Paragraphs 138-139 establish that when a state manifestly fails to protect its population from

genocide, war crimes, ethnic cleansing, and crimes against humanity, the international community has a responsibility to act through the Security Council. R2P has never been successfully invoked against a P5-protected state. Gaza is its most consequential test case and its most complete institutional failure.

All the Best!

